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GBS PROCESS FLOW

Operational Requirements (Retrenchment) — Organisational Process Flow

Sections 189 and 189A of the Labour Relations Act 66 of 1995 · Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294), Part G, items 22–24 and Annexure A · Facilitation Regulations under s.189A(6) · As at 19 October 2026

PREPARED FOR
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Working document for legal review — not legal advice.

LRA = in force; Code = Code of Good Practice: Dismissal, 2025; CL = case law; BP = best practice.

01 / OPERATIONAL REQUIREMENTS PROCESS

Purpose, status and reading notes

This flow tells an employer what to do, by when, and who hands off to whom, from the moment management first sees that jobs may be at risk for business reasons until the last referral window closes and lessons feed back into policy. It runs one shared spine for every retrenchment, then splits at the point where the law splits:

- **s.189 only** — any dismissal for operational requirements, from one employee upwards, where the s.189A threshold is not met (track 3A);
- **s.189 plus s.189A, facilitated** — large-scale retrenchment by an employer with more than 50 employees, where a CCMA or agreed facilitator runs the consultation (track 3B);
- **s.189 plus s.189A, not facilitated** — large-scale retrenchment without a facilitator, where the parties consult and then pass through CCMA or council conciliation before notice of termination (track 3C).

Every case moves through the same phases: readiness; identifying the need and choosing the route; the s.189(3) notice and disclosure; consultation on the track that applies; decision, selection and notice of termination; termination and aftercare; and governance. The flow assumes no collective agreement or bargaining council agreement regulates retrenchment procedure; where one does, it prevails and this flow must be adjusted.

Legal status. The fairness of a dismissal for operational requirements is governed by the LRA: s.188(1)(a)(ii) (fair reason), s.188(1)(b) (fair procedure), s.189 (procedure for all employers), s.189A (additional rules for large-scale dismissals by employers with more than 50 employees), s.191 (dispute routes) and s.192 (onus on the employer once dismissal is proved). “Operational requirements” means

requirements based on the economic, technological, structural or similar needs of an employer (s.213). The Code of Good Practice: Dismissal, 2025 ("the Code"), issued under s.203 and in effect from 4 September 2025, repealed both the Schedule 8 Code and the separate Code of Good Practice on Dismissal Based on Operational Requirements (1999). It is guidance, not statute, but anyone deciding whether a dismissal was fair must take it into account (s.188(2), s.203(3)). Item references verified against the final Code (GN 3470, GG 53294, 4 September 2025): Part G items 22–24, footnote 7 and Annexure A items 1–9 match the citations in this flow. Severance is governed by the BCEA (s.41), and notice by BCEA s.37–38. A search on 29 September 2026 (rechecked at the 15 October 2026 review) found no enacted amendment to ss.189 or 189A since 2014 and none to the Code since publication. A draft Labour Relations Amendment Bill (published for comment 26 February 2026, not yet tabled) proposes deleting s.189A(13)–(18) and other changes to s.189A; it is not law (DRAFT). Monitor under 6.6.

Labels used throughout.

- **LRA** = the Labour Relations Act and other statutes and regulations (BCEA, EEA, Facilitation Regulations, POPIA, Companies Act, Insolvency Act); binding now.
- **Code** = the Code of Good Practice: Dismissal, 2025 (cited by item number); must be taken into account, and departures must be justified.
- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Design principle. Retrenchment is a no-fault dismissal with a high human cost (Code item 22(3)), so the law puts the burden on the employer to show a genuine and fair business reason, that dismissal was a last resort, and that it consulted with an open mind before deciding (Code items 23(2)–(3), 24(5)–(6)). The flow is built so that every later challenge can be answered from a record made at the time: the business case written as a proposal, the notice, the disclosure log, the minutes, the written replies to written representations, the alternatives register and the selection matrix. The statutory clock starts on the date of the s.189(3) notice; the internal clock starts earlier, when management first contemplates job losses. Internal targets sit inside every statutory limit.

Ten interpretation points that shape the flow.

- **The weight of the Code.** The Code is intentionally general; departures may be justified in proper circumstances, including the size of the establishment (item 2(1)); it does not alter rights under a collective agreement (item 2(3)); and it must not be read as requiring small businesses to do what is impractical (item 3). Guidance that was only in the repealed 1999 operational requirements

code (for example on bumping, LIFO and social plans) now survives only as case law and best practice. Record any justified departure at the time.

- **s.189A adds to s.189; it never replaces it.** Every large-scale retrenchment must still meet every requirement of s.189(1)–(7). Section 189A adds a threshold, a minimum timetable, the facilitation option, the right to strike over the dismissals, and a different procedural remedy. This is why the flow runs one spine with three tracks rather than two separate processes.
- **The threshold test.** Section 189A applies only to an employer employing more than 50 employees that contemplates dismissing at least 10 (up to 200 employees), 20 (201–300), 30 (301–400), 40 (401–500) or 50 (more than 500) employees, or where the number contemplated plus the number dismissed for operational requirements in the 12 months before the s.189(3) notice equals or exceeds that number (s.189A(1)). The employer is the legal entity, not the group (public service: the executing authority, s.189A(20)). The Act does not say on what date headcount is measured or whether TES workers deemed to be employees under s.198A(3)(b) count. Take a dated headcount on the notice date, include deemed TES employees, and where the answer is borderline or numbers may grow, treat the matter as s.189A (BP). If the number contemplated rises above the threshold during consultation, take advice on issuing a fresh notice.
- **"Contemplates" means before the decision.** Consultation must start when the employer contemplates dismissal, not after it has decided (s.189(1)). An employer may have a preferred proposal, but must keep an open mind and seriously consider every proposal (Code item 24(6); CL: *Atlantis Diesel Engines v NUMSA*, AD 1995; *Johnson & Johnson v CWIU*, LAC 1998). Board papers, investor announcements and internal emails must speak of a proposal to consult, not a decision to dismiss.
- **Fair reason: genuine and fair.** The reason and the selection must both relate to operational requirements (Code item 23(1)). A court asks whether the reason is genuine and whether dismissal was a fair response in the light of the alternatives, not only whether a commercial rationale exists (CL: *BMD Knitting Mills v SACTWU*, LAC 2001; *CWIU v Algorax*, LAC 2003). Retrenching to improve profitability, not only to survive, can be fair (CL: *General Food Industries v FAWU*, LAC 2004). Note that Code item 23(2) describes dismissal as a measure of last resort; in profit-improvement cases, record why each alternative could not achieve the objective. Dismissing employees who refuse changes to terms is not automatically unfair if the dismissal is genuinely for operational reasons and final, rather than a device to compel acceptance of a demand (s.187(1)(c); CL: *NUMSA v Aveng Trident Steel*, CC 2020).
- **Who must be consulted.** Section 189(1) sets a hierarchy: first anyone the employer must consult under a collective agreement; if none, a workplace forum (for affected employees in its workplace) and any registered union whose members are likely to be affected; if no workplace forum, the registered union; if no union, the affected employees or their nominated representatives.

Apply the hierarchy per affected employee, so that unionised and non-unionised employees are both covered. Bargaining council agreements may regulate the process (Code item 24(4) footnote).

- **Counting days.** LRA periods are calendar days, excluding the first and including the last, unless the last is a Sunday or public holiday (Interpretation Act 33 of 1957 s.4). The 60 days in s.189A(7) and the 30 days in s.189A(8)(a) run from the date the s.189(3) notice was given (day 0). Because the statute requires the periods to "have elapsed" or "lapsed", the earliest s.189A(8)(a) referral is day 31 and the earliest s.189A(7) termination notice is day 61 (60 full days must have elapsed after the notice date). The Labour Court Rules, 2024 (in operation from 17 July 2024, verify) exclude 16 December to 15 January from "days" for court time limits only; do not apply that exclusion to LRA periods.
- **Different dispute routes.** For a s.189-only dismissal, both procedure and reason go to the CCMA or a council within 30 days, then to the Labour Court (s.191(5)(b)(ii)), or to arbitration where s.191(12) applies (individual consultation, only that employee dismissed, or an employer whose workforce is fewer than ten employees, verify current wording). For a s.189A dismissal, procedural complaints can be raised only by a s.189A(13) application within 30 days of the notice of termination (s.189A(17)); the Labour Court may not decide procedural fairness in a s.191 referral (s.189A(18)); and the substantive dispute goes to the Labour Court or is pursued by strike, but not both (s.189A(10)) (CL: *Steenkamp v Edcon*, CC 2016; *Steenkamp v Edcon* [2019] ZACC 17 (CC)). After failed facilitation the substantive dispute goes directly to the Labour Court without conciliation (CL: *NUMSA v Industrial Oleo Chemical Products* [2026] ZACC 22).
- **Premature notice does not make a dismissal invalid.** Notice of termination given before the s.189A(7) or (8) periods expire is a procedural defect: it entitles the union to strike (s.189A(9)) and exposes the employer to s.189A(13) orders, but the dismissal is not void (CL: *Steenkamp v Edcon*, CC 2016, which rejected the invalidity line in the LAC decisions in *De Beers* and *Revan* (verify full citations)). Treat the periods as hard floors all the same.
- **Who is the employer.** A temporary employment service is the employer of placed workers, but after three months below-threshold workers performing temporary services are deemed employees of the client (s.198A(3)(b); CL: *Assign Services v NUMSA*, CC 2018); ending a placement to avoid deeming is a dismissal (s.198A(4)). In a transfer of a going concern, dismissal because of the transfer is automatically unfair (s.187(1)(g)). In business rescue, retrenchments remain subject to ss.189 and 189A (Companies Act s.136(1)(b)); on sequestration or liquidation, contracts are suspended (Insolvency Act s.38(1)); the trustee or liquidator must consult before terminating (s.38(5)–(7), proposals within 21 days); suspended contracts end 45 days after the final appointment unless agreed otherwise (s.38(9)); BCEA s.41(2) severance applies.

Roles used. Employee Relations Officer (ERO, the process owner and spine; in smaller organisations the HR manager); Senior Sign-off (SSO, e.g. CEO or COO; the Board where material); Board or Remuneration / Social and Ethics Committee (BOARD); Legal Adviser (LA);



Finance (FIN); Line Management (LM); HR Manager (HR); Payroll (PAY); Benefits Administrator (BEN); Communications (COMMS); Employer consultation team (ECT: SSO delegate, ERO, FIN and LM representatives). Consulting parties (CP): trade union (TU), workplace forum (WF), nominated employee representatives (REP). Affected employees (EMP). External: CCMA or council (CCMA/BC); facilitator (FAC); Labour Court (LC); Unemployment Insurance Fund (UIF); South African Revenue Service (SARS); retirement fund or insurer (FUND); temporary employment service (TES); business rescue practitioner (BRP).



Master flow at a glance

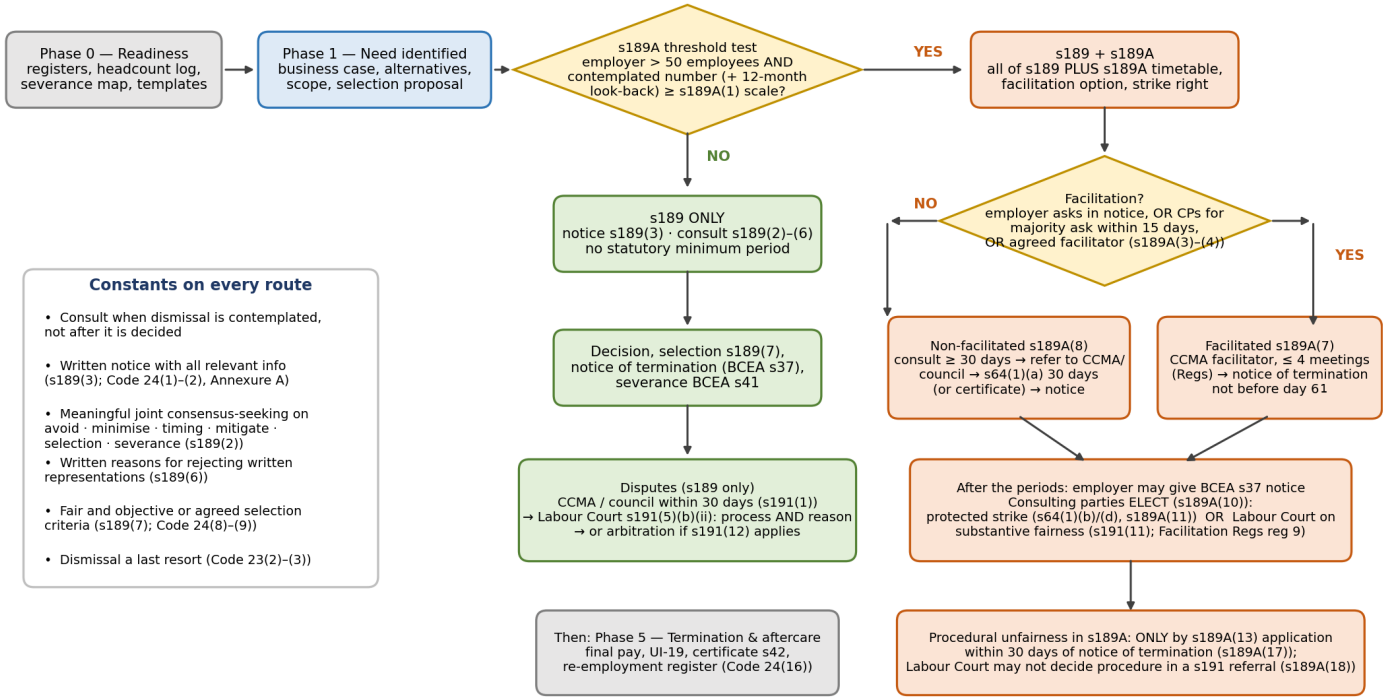
Every retrenchment enters through Phase 1, where the threshold test decides the route. The notice (Phase 2) is common to all routes; consultation (Phase 3) runs on track 3A, 3B or 3C; decision, notice and termination (Phases 4 and 5) are common again, but their timing depends on the track. The disputes and industrial-action track is not a phase: it opens on the day of the notice and runs until the last referral window closes.

s.189 and s.189A compared

Feature	s.189 only	s.189A — facilitated	s.189A — not facilitated
Applies to	Any employer, any number of dismissals below the s.189A threshold	Employer with > 50 employees meeting the s.189A(1) scale (with 12-month look-back)	Same as facilitated
Notice and disclosure	s.189(3)(a)–(j); Code item 24(1)–(2) and Annexure A	Same, plus facilitation request in the notice if the employer wants it (s.189A(3)(a)); LRA 7.20 to CCMA (Regs reg 1)	Same as s.189
Consulting parties and topics	s.189(1)–(2), (5)–(7)	Same, facilitated; where more than one CP, agreement must be by CPs representing the majority (Regs reg 10)	Same as s.189
Minimum period	None; depends on complexity, size and scale (Code item 24(12)–(13))	60 days must have elapsed from the notice: earliest notice of termination is day 61 (s.189A(7)(a); Code item 24(14))	30 days before referral to CCMA/council (s.189A(8)(a)), then s.64(1)(a) period (30 days from referral or certificate) before notice of termination (s.189A(8)(b)). Code item 24(14) sets a 60-day minimum consultation period for every s.189A case: internal floor day 61 unless varied by agreement (s.189A(2)(c))

Feature	s.189 only	s.189A — facilitated	s.189A — not facilitated
Varying periods	n/a	Parties may agree to vary (s.189A(2)(c)); no party may unreasonably refuse an extension needed for meaningful consultation (s.189A(2)(d))	Same as facilitated
Who controls the process	Employer and CPs	Facilitator decides procedural issues finally (Regs reg 4(2)); may order disclosure (reg 5); up to 4 meetings unless extended (reg 6)	Employer and CPs; commissioner during conciliation
Right to strike over the dismissals	No (s.65(1)(c) bars a strike over a dispute that may be referred to adjudication)	Yes, after the periods, instead of a Labour Court referral (s.189A(2)(b), (7)(b), (10), (11))	Yes, after the periods (s.189A(8)(b)(ii))
Procedural challenge	CCMA/council within 30 days, then Labour Court (s.191(1), (5)(b)(ii)) or arbitration (s.191(12))	Only s.189A(13) application within 30 days of notice of termination (s.189A(17)); not in a s.191 referral (s.189A(18))	Same as facilitated
Substantive challenge	As above	Labour Court directly, no conciliation, within 90 days of notice of termination (s.189A(7)(b)(ii); Regs reg 9; *Industrial Oleo*, CC 2026) or strike	Labour Court (s.189A(8)(b)(ii)(bb), s.191(11)) or strike
Typical earliest termination (4-week BCEA notice)	Consultation period + notice	About day 89	About day 89, later if referral or conciliation is delayed

Figure 1 — Route map: which procedure applies, and where each route ends



Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The ERO lane is the spine: every other lane connects to it, and the disputes and industrial-action track runs underneath from the notice date until the referral windows close.

Figure 2 — Integrated swimlane view

	Phase 0 Readiness	Phase 1 Need, plan, route	Phase 2 Notice & disclosure	Phase 3 Consultation (3A / 3B / 3C)	Phase 4 Decision & notice	Phase 5 Termination & aftercare	Phase 6 Governance
Board / SSO	Adopt policy; delegations	Approve business case to CONSULT (not to dismiss)	Sign s189(3) notice		Sign decision memo		Post-implementation review
ERO (process owner — spine)	Registers; 12-month op-req log	Threshold test; route memo; clock tracker	Serve notice; proof of service	Run meetings; minutes; written responses; alternatives register	Pre-decision checklist	Close file; re-employment register	Look-back log; dashboard
Legal Adviser	Templates; adjacent regimes	s189A threshold opinion; special status screen	Disclosure & confidentiality (s16)	Disclosure disputes; strike readiness	Timing check: periods expired?	Settlements; dispute response	
Finance & line mgmt		Business case; options rejected; numbers & categories	Data room	Cost each alternative; selection data	Final numbers (≤ notice)		Savings v business case
HR, Payroll, Benefits	Severance & benefits map	HRIS data; EE impact	Recruitment freeze; letters to employees	VSP / redeployment processing	Termination letters	Final pay; s41; UI-19; s42; tax directive	
Consulting parties (TU / WF / reps)			Receive notice; info requests; facilitation ≤ day 15	Representations; proposals; extension requests	Consensus or impasse recorded	Strike OR LC (s189A); CCMA (s189)	
Affected employees			Informed; EAP	Individual meetings; VSP applications; selection queries	Final meeting; BCEA notice	Outplacement; refer ≤ 30 days (s189)	
CCMA · facilitator · Labour Court			LRA 7.20 facilitation request (s189A)	Facilitation ≤ 4 mtgs OR conciliation (day 31+)		s189A(13) ≤ 30 days; LC ≤ 90 days; s191 disputes	
	Parallel track (section 10): disclosure disputes · s189A(13) · strikes · automatically unfair claims · severance disputes — from notice until referral windows close						

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first retrenchment is contemplated, because the s.189A threshold, the s.189(3)(i)–(j) disclosures, the consulting-party hierarchy and the fairness of selection are all decided by records that must already exist.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the retrenchment policy	Board-approved policy covering both routes and all three tracks; the threshold test; consulting-party hierarchy; notice and disclosure; consultation conduct; alternatives; selection; severance; notice; aftercare; re-employment. Reconcile with recognition agreements, bargaining council agreements and public-service resolutions, which prevail.	BOARD, LA, HR	Now; review annually	R01 policy	Code items 2(3), 3, 22–24; s.189(1)(a)
0.2 Consulting-party register	For each entity, site and job category: registered unions and membership; recognition and consultation clauses in collective agreements; workplace forums; bargaining council agreements on retrenchment; how non-unionised employees nominate representatives.	HR	Now; update monthly	R02 register	s.189(1); Code item 24(3)–(4)
0.3 Headcount and 12-month look-back log	Dated headcount per employing entity (including deemed TES employees); a log of every dismissal for operational requirements with date, entity and number, so the s.189A(1)(b) look-back and the s.189(3)(i)–(j) disclosures can be produced on the day.	HR, PAY	Continuous	R03 log	s.189(3)(i)–(j); s.189A(1); s.198A(3)(b)
0.4 Workforce data	Organograms, job categories, service dates (with breaks), qualifications, skills matrices, any performance or disciplinary data proposed as criteria, EE demographics per category. Data must be accurate before it is used to select.	HR	Now	HRIS extract	s.189(3)(c), (7); EEA s.6
0.5 Severance and benefits map	Contractual or collective severance above BCEA s.41; notice periods; leave pay; retirement fund retrenchment and withdrawal rules; group risk continuation; medical scheme continuation; tax on severance benefits.	BEN, PAY, LA	Now; on renewal	R04 map	BCEA ss.37, 40, 41; fund rules; Income Tax Act (verify)

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.6 Delegations	Who may contemplate and approve a proposal to consult, sign the s.189(3) notice, request facilitation, approve alternatives and enhanced packages, agree extensions, sign the decision and termination letters, settle disputes.	SSO, BOARD	Now	R05 matrix	BP
0.7 Consultation readiness	Trained employer consultation team; external LR counsel on call; interpreters; minute-taker; venues and video platform; CCMA regional contacts; list of accredited private facilitators (s.189A(4)).	HR, LA	Now	Panel list	Regs reg 2(3), 8; BP
0.8 Employee assistance menu	EAP; financial counselling; CV and interview support; outplacement provider; re-skilling and SETA-funded training options; UIF claim guidance; internal vacancy portal.	HR	Now	R06 menu	s.189(3)(g); Code item 24(7)(b)(iv), Annexure A item 7
0.9 Records, confidentiality and POPIA	Restricted consultation file; disclosure log; confidentiality undertakings for commercially sensitive information; retention schedule; lawful basis for processing employee data in selection. Identify the s.27 authorisation for processing race, union membership and health data in selection; limit access to the consultation file; give s.18 notification.	HR, LA	Now	R07 undertaking	s.16(5); POPIA ss.11, 14, 18, 19, 26–27
0.10 Adjacent regimes checklist	Transfers (s.197, s.197A); business rescue; liquidation (Insolvency Act s.38: contracts suspended; consult per s.38(5)–(7); automatic termination 45 days after final appointment, s.38(9); BCEA s.41(2) severance); TES arrangements; mining (MPRDA s.52 notice and Social and Labour Plan); competition-merger conditions on retrenchments; incentive or grant job-retention conditions; JSE announcement rules; public-service frameworks.	LA	Now; at Phase 1	Checklist	Various (verify)
0.11 Train	Managers: do not announce or pre-decide; keep confidentiality; speak of proposals. ECT: s.189(2) topics, written responses, alternatives register, record-keeping. HR: threshold test and clocks.	HR / L&D	At least annually	Attendance records	BP
0.12 Small-business version	A simplified procedure that keeps the core: written notice with the Annexure A information; at least one genuine consultation meeting; consider and answer representations in writing; fair selection; severance; written reasons. Record why a shorter process was fair.	HR, LA	Now	Simplified procedure	Code items 3, 24(13)



Employee side of Phase 0. Nothing is owed yet, but the fairness of selection is decided here: criteria applied to inaccurate service or skills data are neither fair nor objective.

Watch. An employer that cannot produce its 12-month look-back on the notice date risks treating a s.189A retrenchment as a s.189 one, and so giving notice of termination before the s.189A floors expire.



Phase 1 — Identifying the need, planning and choosing the route

The internal clock starts on the day management first contemplates that jobs may be lost. Phase 1 must be finished before the notice is issued, because the notice must already contain the reasons, the alternatives considered and the reasons for rejecting them (s.189(3)(a)–(b)). Phase 1 decides nothing final: it prepares a proposal.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Record the rationale	Financial pressure; loss of a contract; new technology; restructuring; closure; relocation; outsourcing.	Record the economic, technological, structural or similar need with data: financials, forecasts, contract terms, process maps. Distinguish the business problem from the proposed solution.	LM, FIN, SSO	Internal day 0–10 (BP)	R08	s.213; Code item 22(1)–(2)
1.2 Business case and options paper	Rationale recorded.	List alternatives to job losses and, for each, cost, feasibility and why it is proposed to reject it: natural attrition; recruitment freeze; ending TES and contractor use; reduced overtime; short time; reduced hours; redeployment; retraining; voluntary severance or early retirement; wage or bonus freeze by agreement; relocation; bumping. Written as a proposal for consultation.	SSO, FIN, LA	Before 1.3	R08	s.189(3)(b); Code items 23(2)–(3), 24(7)
1.3 Resolve to consult, not to dismiss	Options paper complete.	Board or Exco resolution approves a proposal and the issue of a s.189(3) notice. Avoid wording that shows the outcome is decided. Coordinate any market announcement with LA so it does not pre-empt consultation.	BOARD, SSO, LA	Before notice	R09	s.189(1); CL: *Johnson & Johnson* (LAC 1998)
1.4 Scope	Resolution passed.	Identify affected entities, sites, job categories, positions and a range of numbers. Define the selection pool: which roles are interchangeable, and whether bumping is proposed.	HR, LM	Before notice	R08	s.189(3)(c); Code Annexure A item 1

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.5 Threshold test	Scope defined.	Complete the worksheet: entity headcount on the notice date; numbers contemplated; add op-req dismissals in the 12 months before the notice; apply the s.189A(1) scale. Borderline or likely to grow: treat as s.189A (BP). LA signs off.	HR, LA	Before notice	R10	s.189A(1)
1.6 Choose the route and track	Threshold result.	s.189 only → track 3A. s.189A → decide whether the employer will request facilitation (3B) or not (3C). Weigh scale, number of unions, relationship history, strike risk, complexity of disclosure and the value of a neutral chair. Recommend facilitation for large or contentious matters (BP). Record the decision and reasons.	SSO, LA, ERO	Before notice	R10 route memo	s.189A(3), (4); BP
1.7 Identify consulting parties	Route chosen.	Apply the s.189(1) hierarchy to every affected employee; map union members, non-members and workplace forum coverage. For non-unionised employees, run a nomination process for representatives.	HR, LA	Before notice	R02 extract	s.189(1); Code item 24(3)–(4)
1.8 Selection criteria proposal	Pool defined.	Propose fair and objective criteria (length of service, retention of skills, qualifications are generally accepted). Where LIFO is used, define exceptions for skills retention and justify them. Test for indirect discrimination against EE demographics. Never use union membership or activity, pregnancy or any listed ground.	HR, LA	Before notice	R11	s.189(7); Code item 24(8)–(9); EEA s.6; POPIA ss.26–27
1.9 Special-status screen	Pool defined.	Flag: pregnant employees and those on maternity or parental leave; union representatives and office-bearers; employees in disciplinary or incapacity processes (retrenchment must not be used as a shortcut); protected disclosers; employees on ill-health or COIDA leave; employees near retirement; TES workers; fixed-term employees; s.197 context. LA review of each flag.	HR, LA	Before notice	Screening checklist	s.187(1); s.198A(4); EEA s.6; PDA
1.10 Disclosure pack	Proposal settled.	Assemble all relevant information: financials, business case, organograms, headcount, look-back, selection data, severance calculations, options paper. Identify information that is privileged, confidential and likely to cause substantial harm, or private personal information, and prepare redactions or undertakings.	FIN, HR, LA	Before notice	R12 index	s.189(3), (4)(a); s.16(3)–(5); POPIA ss.26–27



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.11 Communication plan	Pack assembled.	Sequence: consulting parties first, then affected employees, then the wider workforce, then external stakeholders. Prepare scripts and FAQs that speak of proposals and consultation.	COMMS, HR	Before notice	R13	BP
1.12 Diarise all clocks	Route chosen.	Calendar: notice date (day 0); first meeting; day 15 (facilitation request by CPs); day 31 (earliest s.189A(8) referral); day 61 (earliest s.189A(7) termination notice, and internal floor on track 3C under Code item 24(14)); BCEA notice periods; 30-day s.189A(13) and s.191 referral windows; 90-day Labour Court windows.	ERO	Before notice	R14 tracker	ss.189A(3), (7), (8), (17), 191

Employee obligations at this stage. None; employees are not yet aware. Managers must keep the proposal confidential.

Hand-offs. SSO → FIN (business case). SSO → LA (threshold, route, special status). HR → LA (selection criteria). FIN → LA (disclosure pack and confidentiality). ERO → COMMS.

Watch. The options paper is the employer's main exhibit on substance. An alternatives section written after the decision, or one that lists alternatives without costing them, is easily exposed.

Phase 2 — The s.189(3) notice and disclosure

Day 0 is the date the notice is given to the consulting parties. It starts the s.189A clocks and fixes the look-back window. The notice must invite consultation and disclose in writing all relevant information, including the ten items in s.189(3); the Code expects it to follow Annexure A (item 24(2)).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Draft the notice	Phase 1 complete.	Cover every s.189(3) item: reasons; alternatives considered and why each was rejected; number likely to be affected and job categories; proposed selection method; timing; proposed severance; assistance; possibility of re-employment; total employees; op-req dismissals in the preceding 12 months. Add Annexure A content, the proposed consultation schedule and, for 3B, the facilitation request. State that the proposals are open to consultation.	LA, HR, ERO	Before day 0	R15 notice	s.189(3)(a)–(j); Code item 24(1)–(2), Annexure A
2.2 Sign-off	Draft final.	SSO signs within delegation. LA confirms route, threshold and consulting parties.	SSO, LA	Day 0	R15	BP
2.3 Serve on every consulting party	Notice signed.	Deliver to every consulting party identified in 1.7 with the disclosure pack. Record time, method and recipient. For non-unionised employees, deliver to each affected employee or nominated representative.	ERO	Day 0	R16 proof of service	s.189(1), (3); Code item 24(3)–(4)
2.4 Facilitation request (track 3B)	Employer requests facilitation, or CPs may.	Employer: request in the notice and file LRA 7.20 with the CCMA, served and filed per CCMA Rules. CPs representing the majority of employees contemplated for dismissal may request and notify the CCMA within 15 days of the notice. The parties may agree on a private facilitator instead.	LA	Employer: day 0. CPs: by day 15	R17; LRA 7.20	s.189A(3)–(5); Regs regs 1–2

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.5 Tell affected employees	Notice served on CPs.	Written letter to each potentially affected employee, the same day: what is proposed, that no decision has been taken, who represents them, how to make representations, EAP support, contact person. Brief the wider workforce.	HR, LM	Day 0 (after CPs)	R18	Code item 24(4); BP
2.6 Freeze the pool	From day 0.	Freeze recruitment into affected categories; reserve vacancies as possible alternatives; do not move people into or out of the pool without consultation; suspend unrelated restructuring that would change the numbers.	HR	Day 0 onward	Freeze notice	Code item 23(3); BP
2.7 Information requests	CP asks for further information.	Log each request; respond in writing within a set period (BP 5 working days). Refuse only information that is not relevant, is legally privileged, cannot be disclosed without breaking a law or court order, is confidential and would cause substantial harm, or is private personal information without consent. The employer bears the onus of proving that withheld information is not relevant.	LA, FIN, ERO	BP 5 working days per request	R12 log	s.189(4); s.16(3)–(5)
2.8 First meeting set	Notice served.	3A and 3C: propose a first meeting within 7 days (BP). 3B: CCMA names the facilitator and, after consulting the parties, the first meeting date within 7 days of the request, with at least 7 days' notice of that meeting.	ERO; CCMA	3A/3C: by day 7 (BP); 3B: per Regs	R19 agenda	Regs reg 2(1)–(2); BP

Consulting party obligations at this stage. Acknowledge the notice; confirm representatives; request information in writing; decide whether to request facilitation within 15 days (s.189A); keep disclosed confidential information confidential.

Hand-offs. ERO → consulting parties (notice and pack). LA → CCMA (LRA 7.20). HR → employees (letters). FIN → data room.

Watch. A notice that says "the company has decided to retrench" or that lists named employees to be dismissed before consultation begins is strong evidence that the decision was made in advance. Annexure A suggests full names for larger employers; do so only for the purpose of identifying the pool, and treat the list as provisional.



Phase 3 — Consultation

Consultation is a meaningful joint consensus-seeking process on the s.189(2) topics: measures to avoid dismissals, minimise their number, change their timing and mitigate their effects; the selection method; and severance (s.189(2); Code item 24(5)–(7)). The employer must allow representations on these and any other related matter, consider and respond to them, give reasons for disagreeing, and reply in writing to written representations (s.189(5)–(6)). The common steps below apply on every track; the track tables add what differs.

Common steps (all tracks)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Opening meeting	First meeting convened.	Agree ground rules, attendance, interpreters, minute-taking and approval of minutes, schedule, information still required, and whether any part will be without prejudice. Present the rationale and proposals; confirm no decision has been made.	ECT, CP (FAC in 3B)	3A/3C: by day 7 (BP); 3B: first facilitation meeting	R19	s.189(2); Regs reg 3(1)
3.2 Work through every topic	Each meeting.	Take each s.189(2) topic in turn, but do not refuse to discuss a topic because another is unresolved. Record the employer's position, each CP proposal, and the response.	ECT, CP	Each meeting	R19 minutes	s.189(2); Code item 24(7); CL: *SACU v Telkom* (LC 2020, verify)
3.3 Representations and written responses	Representation received.	Log every representation. Consider it genuinely; respond with reasons for disagreeing. Respond in writing to any written representation, before the next meeting where possible (BP within 5 working days).	ERO, LA	BP 5 working days	R20 register	s.189(5)–(6)
3.4 Alternatives register	Proposal made by anyone.	Record every alternative: who proposed it, cost and saving, feasibility, effect on numbers, the employer's response and reasons. Revisit alternatives that become viable as facts change.	ERO, FIN	Updated after each meeting	R21	s.189(2)(a); Code items 23(2)–(3), 24(6)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.5 Minutes	After each meeting.	Circulate draft minutes within 2 working days; note corrections or disagreements rather than refusing them; keep the final version with the attendance register.	ERO	2 working days (BP)	R19	BP
3.6 Voluntary measures	Parties consider VSPs or early retirement.	Consult on the terms before inviting applications. Set eligibility, window, the employer's right to decline where skills must be retained, and cooling-off. Applications are voluntary; no pressure. Record the effect on the numbers still at risk.	ECT, HR, BEN	Per agreed timetable	R22	s.189(2)(a)(ii); CL: *SACU v Telkom* (LC 2020, verify)
3.7 Alternative positions and redeployment	Vacancies or new structure available.	Match affected employees to vacancies and new posts; offer in writing with terms and a reasonable trial period where appropriate. Record reasons for any refusal. An employee who unreasonably refuses a reasonable offer of alternative employment loses statutory severance.	HR, LM	Throughout	R24	BCEA s.41(4); CL: *Irvin & Johnson v CCMA* (LAC 2006, verify)
3.8 Selection criteria agreed or fixed	Consultation on selection.	Try to agree criteria. If none are agreed, use fair and objective criteria and say why. Share the selection matrix and pool definitions.	ECT, CP	Before provisional selection	R11; R23	s.189(7); Code item 24(8)–(9)
3.9 Provisional selection and queries	Criteria settled.	Apply the criteria consistently; produce a provisional list; tell each provisionally selected employee individually with the scoring; allow a query or objection and decide it before the final decision. Share scoring only with the employee concerned and the consulting party entitled to it (POPIA ss.26–27).	HR, LM	Before Phase 4	R23	s.189(7); BP
3.10 Individual consultation	Always for non-unionised; BP for all.	One-to-one meetings on personal circumstances, alternative posts, VSP eligibility, severance calculation and assistance. Allow a representative.	HR, LM, EMP	Throughout	R19	s.189(1)(d); BP
3.11 Severance and assistance	Consultation on mitigation.	Table the statutory minimum and any enhancement; consult on assistance (outplacement, training, time off to seek work, retention of benefits) and re-employment preference.	ECT, BEN	Throughout	R04	s.189(2)(c), (3)(f)–(h); BCEA s.41; Code item 24(15)–(16)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.12 Extension requests	CP asks for more time.	Consider in good faith and reply with reasons. In s.189A cases a party may not unreasonably refuse an extension needed for meaningful consultation; record why any refusal is reasonable.	SSO, LA	Within 2 working days of request (BP)	R25	s.189A(2)(c)–(d); Code item 24(14)
3.13 Consensus or impasse	Topics exhausted.	Record agreement (a collective agreement where concluded with a union) or impasse, the employer's final position on each topic with reasons, and the CPs' positions.	ECT, CP	End of consultation	R26	s.189(2), (6); Regs reg 10

Track 3A — s.189 only

There is no minimum period. The length and number of meetings depend on the complexity of the issues, the nature and size of the employer and the scale of the retrenchments; a simple retrenchment at a small employer can be done quickly (Code item 24(12)–(13)).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3A.1 Calibrate the process	Track 3A chosen.	Set a timetable proportionate to the scale: BP at least two meetings for a single employee, spread over at least a week; several meetings over two to six weeks for group retrenchments. Record why the period is adequate.	ERO, LA	At first meeting	R14	Code item 24(12)–(13)
3A.2 Single-position redundancy	One employee affected.	Consult the employee (with a representative) as the consulting party unless a union or collective agreement applies. Share the business case, discuss alternatives and severance, and respond in writing.	ERO, LM	Throughout	R19; R20	s.189(1)(d); s.191(12)(b)
3A.3 Disclosure disputes	Disclosure refused or disputed.	A CP may refer the dispute to the CCMA under s.16; the commissioner conciliates and, if unresolved, arbitrates. Pause or adapt the timetable so consultation is not undermined.	LA	On referral	R12	s.189(4)(a); s.16(6)–(14)
3A.4 Aggregation watch	Further retrenchments likely within 12 months.	Re-run the threshold test before any later notice: earlier s.189 dismissals count towards the s.189A look-back.	HR, LA	Before any later notice	R03; R10	s.189A(1)(b)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3A.5 Close consultation	Consensus or impasse.	Written final position; move to Phase 4. No statutory waiting period, but do not give notice of termination until representations have been answered.	ERO	End of consultation	R26	s.189(6)

Track 3B — s.189A with facilitation

A CCMA facilitator (or one agreed by the parties) chairs the process under the Facilitation Regulations. Notice of termination may not be given until 60 days from the s.189(3) notice have elapsed (s.189A(7)(a)); counting day 0 as the notice date, the earliest notice date is day 61.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3B.1 Facilitator appointed	LRA 7.20 filed.	CCMA names the facilitator and sets the first meeting date after consulting the parties, within 7 days of receiving the request, giving at least 7 days' notice of the meeting. Parties may agree a different facilitator at their own cost.	CCMA; LA	≤ 7 days of request	CCMA notice	Regs reg 2
3B.2 First facilitation meeting	Meeting convened.	Facilitator helps the parties agree the procedure, dates of further meetings, and what information must be disclosed and when.	FAC, ECT, CP	First meeting	R19	Regs reg 3
3B.3 Facilitation meetings	Schedule agreed.	Up to four facilitation meetings unless settled sooner or the parties agree fewer; the CCMA Director may authorise more. The facilitator may chair, decide procedural issues (finally), arrange further meetings and direct the parties to consult without the facilitator. Keep consulting between meetings.	FAC, ECT, CP	Between day ~15 and day 60	R19	Regs regs 4, 6
3B.4 Disclosure orders	Disclosure disputed.	Facilitator hears representations and may order production of relevant documents; the onus and s.16 confidentiality rules apply. The Labour Court may not later reopen a disclosure matter decided by a s.16 award.	FAC, LA	When raised	R12	Regs reg 5; s.189(4)(b); s.189A(16)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3B.5 With or without prejudice	Parties want part without prejudice.	Facilitation is with prejudice; agree in writing if any part is without prejudice. The facilitator cannot be called as a witness.	LA	When agreed	Written agreement	Regs reg 7
3B.6 Majority agreement	More than one CP.	Any agreement for s.189A(2) or the Regulations must be concluded by CPs representing the majority of the employees concerned.	ECT, LA	On agreement	R26	Regs reg 10
3B.7 Day-61 gate (60 days elapsed)	Day 60 has fully elapsed (day 61).	Only once 60 full days have elapsed after the notice date (from day 61) may the employer give BCEA s.37(1) notice of termination, unless the parties agreed a different period. Confirm consultation on all topics is complete and no reasonable extension request is outstanding.	SSO, LA	Not before day 61 (60 full days must have elapsed after the notice date)	R27	s.189A(2)(c)–(d), (7)(a)

Track 3C — s.189A without facilitation

The parties consult without a facilitator. No party may refer a dispute to the CCMA or a council until 30 days from the notice have passed (s.189A(8)(a)); once the s.64(1)(a) period has run after referral, the employer may give notice of termination (s.189A(8)(b)(i)). Code item 24(14) sets a 60-day minimum consultation period for every s.189A case, so do not give notice before day 61 on this track either unless the periods are varied by agreement (s.189A(2)(c)).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3C.1 Consult at least 30 days	Track 3C chosen.	Run the common steps with a schedule of meetings across at least 30 days; do not refer before day 31.	ECT, CP	Day 0–30 minimum	R14; R19	s.189A(8)(a)
3C.2 Referral to CCMA or council	Day 30 passed; dispute remains.	A CP refers the dispute for conciliation. If no CP refers, the Act is unclear whether the s.64(1)(a) period can run: BP is for the employer itself to refer, so that the period starts and the timetable is certain. LA to confirm.	CP or LA	From day 31	LRA 7.11 (verify)	s.189A(8)(a)–(b); s.64(1)(a)
3C.3 Conciliation period	Referral made.	Conciliation within 30 days of referral, or until a certificate that the dispute is unresolved is issued if earlier; the parties may agree to extend. Keep consulting.	CCMA/ BC, ECT, CP	30 days from referral	Certificate	s.64(1)(a)(i)–(ii)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3C.4 Notice gate	Conciliation period elapsed.	Only then, and not before day 61 (Code item 24(14)), may the employer give BCEA s.37(1) notice of termination, unless the periods are varied by agreement.	SSO, LA	After s.64(1)(a) period and not before day 61	R27	s.189A(8)(b)(i)

Consulting party obligations at this stage. Engage genuinely; make proposals and representations in time; do not use delay as a tactic; do not unreasonably refuse an extension (s.189A); keep confidential information confidential; attend facilitation meetings. A consulting party that refuses to engage cannot later rely on its own refusal (CL, verify).

Hand-offs. ERO ↔ consulting parties (minutes, responses). FIN → ERO (costing of alternatives). HR ↔ employees (VSP, redeployment, provisional selection). LA → CCMA (disclosure disputes, referrals). FAC → parties (procedural rulings).

Watch. The written-response duty in s.189(6)(b) is the most frequently breached requirement. Every written representation, including a union letter tabled at a meeting, needs a written reply with reasons.

Phase 4 — Decision, selection and notice of termination

The decision is taken only after consultation has run its course and, for s.189A, after the statutory periods have elapsed. The decision memo is the employer's record of why dismissal remained necessary after every alternative was considered.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Pre-decision checklist	Consultation ends.	Confirm: every s.189(2) topic consulted; every written representation answered in writing; alternatives register complete; selection applied consistently and queries decided; special-status flags reviewed; EE impact checked; s.189A periods elapsed or varied by agreement; no reasonable extension request outstanding; numbers not higher than in the notice (if higher, re-notify).	ERO, LA	Before 4.2	R27	ss.189, 189A(7)–(8); Code item 24
4.2 Decision	Checklist complete.	SSO signs the decision memo: final numbers and categories, selection result, severance and assistance, timing, reasons for rejecting the remaining proposals.	SSO	After 4.1	R28	Code item 23(2)
4.3 Tell consulting parties	Decision signed.	Written notice of the outcome, final terms, and list of affected positions, before individual notices go out.	ERO	Same day as 4.2 (BP)	Outcome letter	BP
4.4 Individual final meeting	CPs informed.	Meet each selected employee (with a representative): selection and scoring; alternatives offered; severance and final pay; notice; assistance; re-employment preference; dispute rights. Hand over the termination letter.	HR, LM	Within 2 working days of 4.3 (BP)	R29	BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.5 Notice of termination	Final meeting.	At least BCEA s.37(1) notice (one week if employed six months or less; two weeks if more than six months but not more than a year; four weeks if a year or more, or a farm or domestic worker employed more than six months), or longer by contract; a collective agreement may vary the period within s.37(2)–(3). Pay in lieu is permitted (s.38). Notice must be in writing (and explained orally where the employee cannot understand it) (s.37(5)). It may not be given during, or run at the same time as, annual, maternity, parental or other Chapter Three leave, except sick leave (s.37(6)); time notices for employees on leave accordingly. For s.189A, not before day 61 (s.189A(7)(a); Code item 24(14)) and, on track 3C, not before the s.189A(8)(b) gate.	SSO, HR	Per BCEA s.37; s.189A gates (earliest day 61)	R29	BCEA ss.37–38, 37(2)–(6); s.189A(7)(a), (8)(b)(i); Code item 24(14)
4.6 Termination letter contents	With 4.5.	Reason (operational requirements); how the employee was selected; termination date; notice or pay in lieu; severance calculation; leave pay; other amounts; benefits and fund position; UIF; re-employment preference arrangements; dispute routes and time limits for the track (facilitated: Labour Court directly within 90 days of the termination notice, no conciliation, *Industrial Oleo*, CC 2026).	HR, LA	With 4.5	R29	s.189(3)(f)–(h); BCEA ss.40–42
4.7 Time off and support during notice	Notice running.	Allow reasonable time off to seek work and to attend outplacement (BP). Start the assistance promised in the notice.	HR, LM	During notice	R06	s.189(3)(g); BP
4.8 Accept settlements	Employee or CP proposes settlement.	Written, informed, voluntary; state the consideration and any waiver clearly; do not include terms that stop the employee making protected disclosures.	LA	On proposal	Settlement agreement	PDA s.2(3); s.142A (verify)

Employee obligations at this stage. Attend the final meeting or explain; consider any last alternative offered; work the notice period unless paid in lieu; return property.



Watch. Two timing errors recur in s.189A cases: counting 60 days from the first meeting instead of the notice date, and issuing termination notices on or before day 60, before 60 full days have elapsed. The earliest notice date is day 61; the termination date follows the notice period.



Phase 5 — Termination, payment and aftercare

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Final pay and severance	Termination date.	Pay remuneration, notice pay (if in lieu), leave pay, and severance of at least one week's remuneration for each completed year of continuous service, or more if agreed. Payment of severance does not affect other amounts due.	PAY	On termination (BP); final remuneration no later than 7 days after termination (BCEA s.32)	R30	BCEA ss.32, 35, 38, 40, 41(2), (5)
5.2 Tax	Severance payable.	Apply for a tax directive for the severance benefit and apply the correct tax treatment.	PAY	Before payment	SARS directive	Income Tax Act (verify)
5.3 Statutory documents	Termination.	Certificate of service; UI-19 and UIF declarations so employees can claim unemployment benefits; retirement fund and group risk forms; medical scheme notice.	PAY, BEN	On termination	R31	BCEA s.42; UIA (verify)
5.4 Property and access	Termination.	Return of property; removal of system and site access; handover.	LM, IT	On termination	R31	BP
5.5 Deliver assistance	After termination.	Deliver the outplacement, training and support promised in the notice and consultation; record delivery.	HR	Per commitment	R06	s.189(3)(g)
5.6 Re-employment preference	Comparable vacancy arises.	Keep a register of retrenched employees and contact details; offer comparable vacancies first for the agreed period (BP 12 months) and record offers and responses.	HR	Per agreement	R32	s.189(3)(h); Code item 24(16), Annexure A item 8
5.7 Remaining workforce	Implementation.	Communicate the new structure; manage workload and role changes by agreement; watch for unilateral changes that could be unfair labour practices; offer EAP.	LM, HR	From termination	Communication	s.186(2)(a); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.8 Severance disputes	Dispute about severance.	Respond to a referral to the CCMA or a council; the matter may be dealt with together with a dismissal dispute.	LA	Per referral	R33	BCEA s.41(6)
5.9 Close the file	All payments made.	Consolidate the record; update the 12-month look-back log; diarise retention until every referral and review period has run.	ERO	Within 10 working days (BP)	R03; R14	POPIA s.14; BP

Employee obligations at this stage. Return property; lodge UIF and fund claims; keep contact details current for re-employment; refer any dispute in time.



Phase 6 — Governance and learning

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Post-implementation review	Three to six months after termination.	Compare actual savings and structure with the business case. Material differences may suggest the reason was not genuine.	FIN, ERO	BP 6 months	R34	Code item 23(1)
6.2 Rehire monitoring	Hiring into redundant roles.	LA review of any new hire into a role declared redundant within 12 months; apply re-employment preference.	HR, LA	Continuous	R32	Code item 24(16); CL (pretext)
6.3 Look-back maintenance	Every op-req dismissal.	Keep the 12-month look-back log current for every entity.	HR	Continuous	R03	s.189A(1)(b)
6.4 EE and B-BBEE effects	After termination.	Assess the effect on the EE plan and numerical targets; revise the plan through the EE consultative process where needed.	HR	Next EE cycle	EE plan	EEA ss.16, 20 (verify)
6.5 Board reporting	Quarterly.	Numbers, costs, disputes, strikes, awards and lessons; consistency across entities.	ERO, SSO	Quarterly	R35	Governance
6.6 Policy refresh and legislative watch	Annually or on change.	Track amendments to the LRA, the Code, the Facilitation Regulations, CCMA Rules and Labour Court Rules, and case law on ss.189 and 189A. Monitor the draft Labour Relations Amendment Bill (published for comment 26 February 2026, not yet tabled; DRAFT), which proposes deleting s.189A(13)–(18).	LA	Ongoing	R01	LRA s.203



Parallel track — disputes, industrial action and remedies

This track opens on the notice date and runs until the last referral, review or strike window closes. Its events are triggered by what the consulting parties or employees do, not by the consultation timetable. Most events differ depending on whether the dismissal is s.189 only or s.189A.

Event	Route	Trigger	Organisational action	Deadline	Form	Authority
P1 Disclosure dispute	Both	CP disputes a refusal to disclose.	Respond to the s.16 referral (3A/3C) or facilitator hearing (3B); prove irrelevance of withheld information; propose confidentiality terms.	Per CCMA notice	R12	s.189(4); s.16; Regs reg 5
P2 Procedural challenge — s.189A	s.189A	CP applies to compel a fair procedure, interdict dismissal, reinstate until compliance, or for compensation.	Brief LA immediately; prepare the record; consider curing the defect (e.g. extending consultation) rather than opposing. The application must be brought within 30 days of the termination notice (condonation possible) and is heard on an expedited basis. Note: the draft Labour Relations Amendment Bill (DRAFT, not in force) would delete s.189A(13)–(18).	Application ≤ 30 days of notice (s.189A(17))	R33	s.189A(13)–(17); Labour Court Rules 2024 (urgent / expedited procedure)
P3 Premature notice — s.189A	s.189A	Termination notice given before the s.189A(7)(a) or (8)(b)(i) period.	Withdraw and re-issue at the right time where possible; expect strike notice; LA advice.	Immediately	R27	s.189A(9); CL: *Steenkamp v Edcon* (CC 2016)
P4 Strike over the dismissals	s.189A	Union gives strike notice after the periods, or after premature notice.	Contingency plan; picketing rules; essential and maintenance services; lock-out only in response to a strike notice. Secondary strikes need at least seven days' written notice to the secondary employer (s.66(2)(b)). A union that strikes cannot also refer the reason to the Labour Court, and its members' referrals are deemed withdrawn.	48 hours' notice (s.64(1)(b)); seven days where the State is the employer (s.64(1)(d)); at least 7 days for secondary (s.66(2)(b))	Strike plan	s.189A(2)(b), (9)–(12); ss.64–69 (incl. s.66(2)(b)), 76

Event	Route	Trigger	Organisational action	Deadline	Form	Authority
P5 Substantive dispute — s.189A	s.189A	CP or employees refer fairness of the reason to the Labour Court.	Defend on the business case, alternatives register and selection record.	Facilitated: direct Labour Court referral within 90 days of termination notice (Regs reg 9; *Industrial Oleo*, CC 2026). Not facilitated: Labour Court referral under s.191(11); for planning, assume 90 days from the later of the s.64(1)(a) certificate/period and the termination notice; LA to confirm	R33	s.189A(7)(b)(ii), (8)(b)(ii)(bb); s.191(11); CL: *NUMSA v Industrial Oleo Chemical Products* [2026] ZACC 22
P6 Dismissal dispute — s.189 only	s.189	Employee refers an unfair dismissal dispute.	Conciliation; then Labour Court on procedure and substance, or arbitration where the employee elects under s.191(12).	Employee: 30 days of dismissal; LC: 90 days of certificate	R33	s.191(1), (5)(b)(ii), (11), (12)
P7 Automatically unfair claim	Both	Allegation that the real reason was union activity, pregnancy, discrimination, a transfer, a protected disclosure, or compelling acceptance of a demand.	LA review; chronology showing the operational reason; the Phase 1 special-status record.	Per referral	R33	s.187(1)(a)–(h); CL: *Aveng Trident Steel* (CC 2020)
P8 Severance dispute	Both	Dispute over entitlement or amount, including refusal of alternative employment.	Respond with the offer, its terms and the reasons the refusal was unreasonable.	Per referral	R24; R30	BCEA s.41(4), (6)



Event	Route	Trigger	Organisational action	Deadline	Form	Authority
P9 Unfair labour practice	Both	Unilateral demotion or change to terms of remaining employees.	Prefer agreed changes; respond with the record.	Employee: 90 days	R33	s.186(2)(a); s.191(1)(b)(ii)
P10 TES and transfer overlaps	Both	Placed workers or a transfer affected.	Confirm who the employer is; include deemed employees; no termination to avoid deeming; take LA advice on any retrenchment near a s.197 transfer.	Before notice	Checklist	s.187(1)(g); ss.197, 198A(3)–(4)
P11 Remedies and review	Both	Award or judgment.	Comply or review (arbitration awards) or appeal (Labour Court). Reinstatement, re-employment or compensation up to 12 months' remuneration; 24 months for automatically unfair dismissal; s.189A(13) compensation must comply with s.194.	Review: 6 weeks	Litigation file	ss.145, 189A(15), 193, 194



Consulting party and employee obligations

Consultation is a joint process. The employer should explain these duties in the notice and at the first meeting, without using them to discourage participation.

Obligation	Who	When	Consequence if not met	Authority
Engage in a meaningful joint consensus-seeking process	CPs and employer	Throughout	A party that refuses to engage weakens its later procedural complaint	s.189(2); CL (verify)
Make representations and proposals in time	CPs, employees	Throughout	Employer may decide on the proposals tabled	s.189(5)
Request information in writing; use it for its purpose; keep confidential information confidential	CPs	Throughout	Loss of trust; possible s.16 breach remedies	s.189(4); s.16
Request facilitation within 15 days (CPs representing the majority)	CPs	By day 15	No right to CCMA facilitation after that	s.189A(3)(b)
Not unreasonably refuse a needed extension	All consulting parties	s.189A	Procedural challenge; adverse inference	s.189A(2)(d); Code item 24(14)
Elect strike or Labour Court on the reason — not both	Unions, employees	After s.189A periods	Referral deemed withdrawn if union strikes	s.189A(10)
Bring any s.189A(13) application in time	CPs	30 days of termination notice	Condonation needed	s.189A(17)
Consider reasonable alternative employment reasonably	Employees	Throughout	Loss of statutory severance	BCEA s.41(4)
Refer s.189-only disputes in time	Employees	30 days of dismissal	Condonation needed	s.191(1)



Rights the organisation must not obstruct. To be consulted before a decision is taken; to relevant information; to make representations and receive reasons in writing; to facilitation (s.189A); to strike over large-scale dismissals once the periods have run; to be selected on agreed or fair and objective criteria; to severance; to refer disputes; to freedom of association and freedom from unfair discrimination.



Hand-offs and interfaces register

Send the minimum information needed, keep proof of what was sent, to whom and when, and record it on the file.

Party or system	Trigger	What is handed over	When	Step	Authority
Board / Exco	Proposal ready; decision	Business case, options paper, resolution to consult; decision memo	Before notice; Phase 4	1.3, 4.2	Governance
Finance	Rationale; alternatives	Financials; costing of alternatives; savings tracking	Phase 1 onward	1.1–1.2, 3.4, 6.1	BP
Legal Adviser	Threshold, route, special status, disputes	Privileged instructions and opinions	From Phase 1	1.5–1.9, P1–P11	Privilege
Trade unions / workplace forum / reps	Notice; each meeting	Notice, disclosure pack, minutes, written responses, outcome	Day 0 onward	2.3, 3.1–3.13, 4.3	s.189(1)–(6)
Affected employees	Notice; selection; outcome	Letters, VSP offers, provisional selection, termination letter	Day 0 onward	2.5, 3.6–3.10, 4.4	Code item 24(4)
CCMA	Facilitation; referral; disputes	LRA 7.20; referral forms; response bundles	Day 0–15; day 31+	2.4, 3B, 3C.2, P1	s.189A(3), (8); Regs
Private facilitator	Agreed appointment	Terms of appointment; notice and pack	On agreement	3B.1	s.189A(4); Regs reg 2(3)
Labour Court	s.189A(13); substantive disputes	Answering papers; record	On service	P2, P5, P6	ss.189A(13), 191
Payroll / SARS	Termination	Final pay, severance, tax directive	On termination	5.1–5.2	BCEA; Income Tax Act
UIF	Termination	UI-19 and declarations	On termination	5.3	UIA (verify)
Retirement fund / insurer / medical scheme	Termination	Exit notifications; claim forms	On termination	5.3	Fund rules

Party or system	Trigger	What is handed over	When	Step	Authority
TES	Placed workers affected	Consultation arrangements; deemed-employee status	Phase 1	1.9, P10	s.198A
Business rescue practitioner / liquidator	Company in rescue or liquidation	Consultation plan; approvals	Phase 1	0.10	Companies Act s.136; Insolvency Act s.38(1), (5)–(9); BCEA s.41(2)
Regulators (e.g. Department of Mineral and Petroleum Resources (DMPR) for mining; MPRDA s.52 notice)	Sector notice duty	Prescribed notice	Per sector law	0.10	MPRDA s.52 (verify)
Outplacement / EAP provider	Assistance agreed	Minimum personal data with consent	From notice	2.5, 5.5	POPIA

Adjacent regimes to check at Phase 1. The GBS Misconduct, Incapacity, COIDA and PDA flows (a retrenchment must not be used to end a case that belongs in one of them); s.197 and s.197A transfers; Companies Act business rescue; Insolvency Act s.38; MPRDA s.52 and Social and Labour Plans; Competition Act merger conditions; JSE Listings Requirements; public-service frameworks.

Forms register

Thirty-five forms support the flow, numbered in the order used. None is a statutory form except LRA 7.20 (facilitation request) and the CCMA referral forms, which are prescribed; the s.189(3) notice must follow Annexure A to the Code.

Form	Name	Used at	Statutory or prescribed?
R01	Retrenchment policy and procedure	0.1, 6.6	No
R02	Consulting-party register	0.2, 1.7	No
R03	Headcount and 12-month op-req dismissal log	0.3, 3A.4, 5.9, 6.3	No (supports s.189(3)(i)–(j), s.189A(1))
R04	Severance and benefits map	0.5, 3.11	No
R05	Delegation of authority matrix	0.6	No
R06	Employee assistance menu	0.8, 4.7, 5.5	No
R07	Confidentiality undertaking for disclosed information	0.9, 1.10	No
R08	Business case and options paper (proposal)	1.1–1.4	No
R09	Resolution to consult	1.3	No
R10	s.189A threshold worksheet and route memo	1.5–1.6, 3A.4	No
R11	Selection criteria proposal and pool definition	1.8, 3.8	No
R12	Disclosure index and information-request log	1.10, 2.7, 3A.3, 3B.4, P1	No
R13	Communication plan and scripts	1.11	No
R14	Clock tracker	1.12, 3A.1, 5.9	No

Form	Name	Used at	Statutory or prescribed?
R15	s.189(3) notice (Annexure A format)	2.1–2.2	Content prescribed by s.189(3); form per Code Annexure A
R16	Proof of service	2.3	No
R17	Facilitation request cover letter (with LRA 7.20)	2.4	LRA 7.20 prescribed (Regs reg 1)
R18	Letter to affected employees	2.5	No
R19	Meeting agenda, attendance register and minutes	2.8, 3.1–3.10	No
R20	Representations and written response register	3.3, 3A.2	No (supports s.189(6))
R21	Alternatives register	3.4	No
R22	VSP / early retirement offer and separation agreement	3.6	No
R23	Selection matrix, provisional list and query form	3.8–3.9	No
R24	Alternative position offer and trial letter	3.7, P8	No
R25	Extension request and response	3.12	No
R26	Consensus agreement or impasse record	3.13, 3A.5, 3B.6	Collective agreement where signed with a union
R27	Pre-decision and timing checklist	3B.7, 3C.4, 4.1, P3	No
R28	Decision memo	4.2	No
R29	Notice of termination (operational requirements) with dispute rights	4.4–4.6	No
R30	Final pay and severance calculation	5.1, P8	No
R31	Termination checklist (certificate, UI-19, tax directive, fund, property)	5.3–5.4	UI-19 prescribed
R32	Re-employment preference register and offer letter	5.6, 6.2	No
R33	Dispute and s.189A(13) response pack	5.8, P2–P9	Court and CCMA forms
R34	Post-implementation review	6.1	No



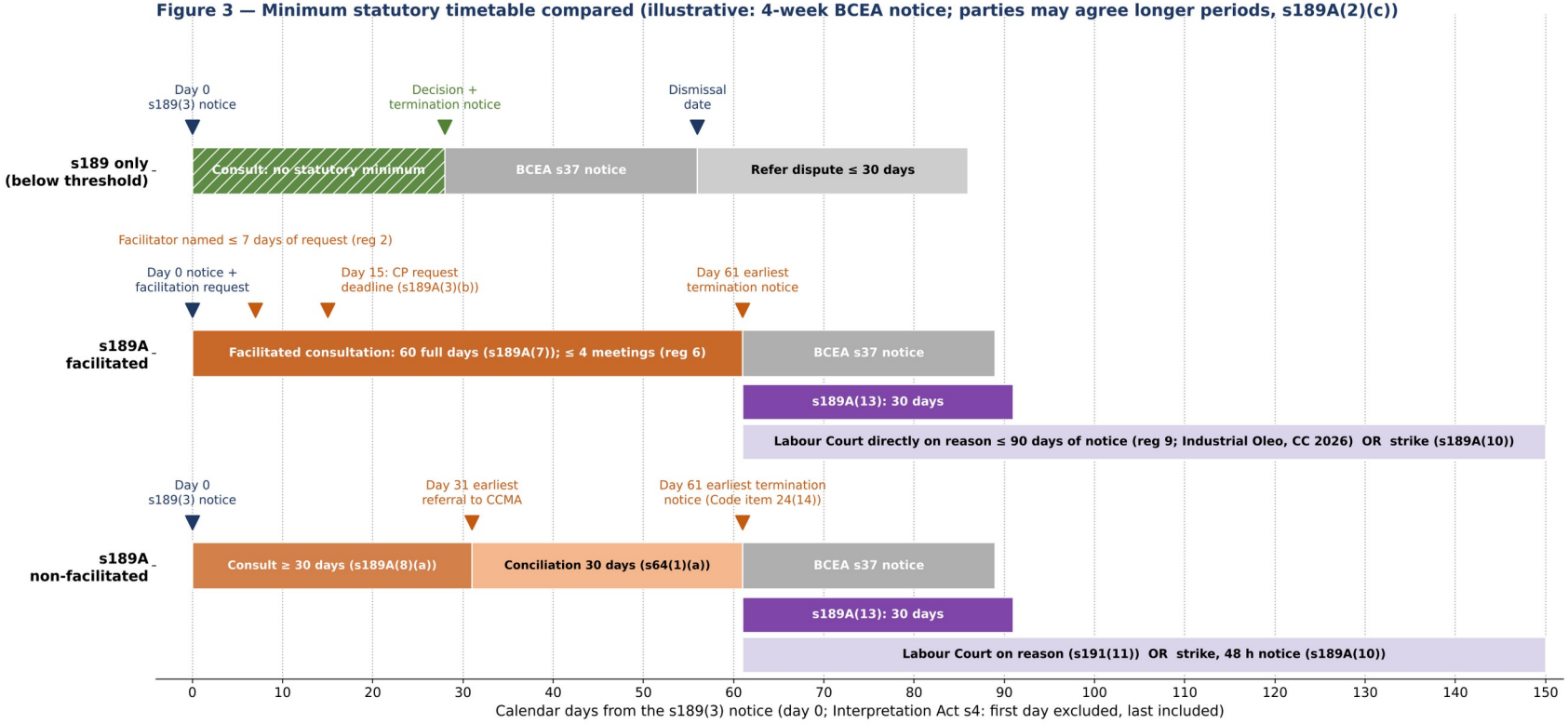
Form	Name	Used at	Statutory or prescribed?
R35	Governance dashboard	6.5	No



Timeline calendar and liability register

The three routes share a start date (the notice) and differ in their floors. The calendars below use the statutory periods and set internal targets as policy.

Figure 3 — Minimum statutory timetable compared (illustrative: 4-week BCEA notice; parties may agree longer periods, s189A(2)(c))



Track 3A — s.189 only

When	Event	Owner	Authority	Type
Before day 0	Business case, threshold test, route, disclosure pack	SSO, LA, FIN	s.189(3)	BP
Day 0	Notice and disclosure served	ERO	s.189(3)	Statutory
By day 7	First consultation meeting	ECT	Code item 24(12)–(13)	BP
Within 5 working days of each written representation	Written response with reasons	ERO, LA	s.189(6)(b)	Statutory duty; BP timing
Two to six weeks (scale-dependent)	Consultation concluded	ECT	Code item 24(12)–(13)	BP
After consultation	Decision; notice of termination	SSO	BCEA s.37	Statutory notice
Dismissal + 30 days	Last day for employee to refer dispute	EMP	s.191(1)(b)(i)	Statutory
Certificate + 90 days	Last day to refer to Labour Court	EMP	s.191(11)	Statutory

Track 3B — s.189A facilitated

When	Event	Owner	Authority	Type
Day 0	Notice with facilitation request; LRA 7.20 filed	ERO, LA	s.189A(3)(a); Regs reg 1	Statutory
Within 7 days of request	CCMA names facilitator and first meeting date (≥ 7 days' notice)	CCMA	Regs reg 2	Statutory (CCMA)
By day 15	Last day for CPs to request facilitation	CP	s.189A(3)(b)	Statutory
Day ~15 to day 60	Up to four facilitation meetings; consultation between meetings	FAC, ECT, CP	Regs reg 6	Statutory
Day 61 (earliest; 60 full days elapsed)	Notice of termination (unless periods varied by agreement)	SSO	s.189A(7)(a)	Statutory floor

When	Event	Owner	Authority	Type
Notice + 30 days	Last day for s.189A(13) application	CP	s.189A(17)	Statutory
Notice + 90 days	Last day for Labour Court referral on the reason (if no strike)	CP, EMP	Regs reg 9	Statutory

Track 3C — s.189A not facilitated

When	Event	Owner	Authority	Type
Day 0	Notice served	ERO	s.189(3)	Statutory
Day 0–30	Consultation; no referral allowed	ECT, CP	s.189A(8)(a)	Statutory floor
From day 31	Referral to CCMA or council (by CP; employer as BP if none)	CP / LA	s.189A(8)(a)	Statutory / BP
Referral + 30 days (or certificate)	Conciliation period ends	CCMA/BC	s.64(1)(a)	Statutory
After that period and not before day 61 (Code item 24(14))	Notice of termination	SSO	s.189A(8)(b)(i)	Statutory floor
Notice + 30 days	Last day for s.189A(13) application	CP	s.189A(17)	Statutory
Per s.191(11): for planning, 90 days from the later of the s.64(1)(a) certificate/period and the termination notice (LA to confirm)	Labour Court referral on the reason (if no strike)	CP, EMP	s.189A(8)(b)(ii)(bb)	Statutory

Liability register

Exposure	Who is exposed	Consequence	Authority
Dismissal without a fair reason or fair procedure (s.189 only)	Employer	Reinstatement, re-employment or compensation up to 12 months' remuneration	ss.188, 193, 194(1)
Procedural non-compliance in a s.189A retrenchment	Employer	Orders to comply, interdict, reinstatement until compliance, or compensation	s.189A(13)–(15)
Termination notice before the s.189A periods	Employer	Protected strike; s.189A(13) orders	s.189A(9), (13)
Dismissal for a prohibited reason (union activity, pregnancy, discrimination, transfer, disclosure, compelling a demand)	Employer	Automatically unfair; compensation up to 24 months' remuneration	ss.187, 194(3)
Refusal to disclose relevant information	Employer	Disclosure order; procedural unfairness	s.189(4); s.16; Regs reg 5
Failure to pay severance	Employer	Compliance order; payment with interest	BCEA ss.41, 68–69 (verify)
Discriminatory selection	Employer	Unfair discrimination claim; automatic unfairness	EEA s.6; s.187(1)(f)
Unlawful processing of employee data in selection	Responsible party	Regulatory action; civil claim	POPIA ss.11, 19, 26–27, 99 (verify)

Source review, points to check in existing GBS materials, and drafting issues

The uploaded slide deck could not be reviewed. "Operational Requirements Consultation Process rev 19 May (pptx) — with Timeline" is password-protected, so its content could not be compared with this flow in the way the other GBS flows compared existing materials. When an unprotected copy is available, check it against the points below, which are the errors most often found in retrenchment materials.

Points to check in the deck and other GBS retrenchment materials

#	Common statement	Correction
1	References to "the Code of Good Practice on Dismissal Based on Operational Requirements" or "Schedule 8"	Both were repealed on 4 September 2025. Cite the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294), items 22–24 and Annexure A.
2	Citing the uploaded Code as the operative text	The uploaded file is the draft of 21 January 2025 (GN R.5765, GG 51947). Cite the final Code (GN 3470, GG 53294, 4 September 2025); the item references in this flow have been verified against it.
3	"Consultation must last at least 60 days" for every retrenchment	Under the Act the 60-day period in s.189A(7) applies to facilitated cases; a non-facilitated case has a 30-day floor before referral plus the s.64(1)(a) period. But Code item 24(14) sets a 60-day minimum consultation period for every s.189A case, so do not give notice of termination before day 61 on any s.189A track unless the periods are varied by agreement. A s.189-only process has no minimum.
4	Reliance on s.189A(19) (substantive fairness test)	s.189A(19) was repealed by Act 6 of 2014. Use the case-law test (genuine and fair reason, last resort, fair selection).
5	Dismissals before the s.189A periods expire "are invalid"	Since *Steenkamp v Edcon* (CC 2016) the remedy is procedural (s.189A(9), (13)); the dismissal is not void.
6	Procedural unfairness in a s.189A case can be raised at the CCMA or in a s.191 referral	Only by a s.189A(13) application within 30 days of the termination notice (s.189A(17)–(18)).
7	Facilitation is compulsory for large-scale retrenchments	Facilitation applies only if requested by the employer, by CPs representing the majority within 15 days, or by agreement (s.189A(3)–(4)).

#	Common statement	Correction
8	Threshold counted only on the current exercise	The 12-month look-back in s.189A(1)(b) adds prior op-req dismissals.
9	Severance: "one week per year worked"	At least one week's remuneration for each completed year of continuous service (BCEA s.41(2)); forfeited only where the employee unreasonably refuses a reasonable offer of alternative employment (s.41(4)).
10	Timeline counts 60 days from the first facilitation meeting	Count from the date the s.189(3) notice was given.
11	Consult only the union	Apply the s.189(1) hierarchy to every affected employee; non-members may need separate consultation through nominated representatives.

Drafting issues in the Code, the LRA and the Regulations worth raising

- Annexure A item 9 tells only employers with more than 50 employees to disclose total headcount and op-req dismissals in the preceding 12 months, but s.189(3)(i)–(j) require every employer to disclose them. Follow the Act.
- Item 24(4) omits the workplace forum and nominated representatives, though item 24(3) cross-refers to all s.189(1) parties; follow s.189(1).
- Code item 24(7) lists the consultation topics, but does not repeat the s.189(6) duty to respond in writing to written representations, the most commonly breached requirement.
- The Code gives no guidance on bumping, LIFO and its exceptions, voluntary packages, TES workers, the s.189A threshold count, what "contemplates" means, or facilitation, much of which the repealed 1999 code covered.
- Annexure A footnote 8 suggests giving full names, job titles and numbers of affected employees in the notice. That can make the process look pre-decided and raises POPIA questions; the Act requires numbers and job categories (s.189(3)(c)).
- s.189A(1) does not fix the date on which the "more than 50 employees" count is taken or say whether deemed TES employees count.
- s.189A(8)(b) makes notice of termination depend on the s.64(1)(a) period having elapsed, but that period only runs after a referral. The Act does not say what happens if no party refers.
- s.189A(7)(b)(ii) refers to a Labour Court referral "in terms of section 191(11)", which runs from a conciliation certificate, while Facilitation Regulations reg 9 runs 90 days from the termination notice. After failed facilitation, a dispute about the fairness of the



reason goes directly to the Labour Court within 90 days of the termination notice; conciliation is not required (CL: *NUMSA v Industrial Oleo Chemical Products* [2026] ZACC 22, overruling *NUMSA v SAA Technical*, LAC 2024; Regs reg 9).

- Facilitation Regulations reg 2(1) refers to "a notice in terms of regulation 2"; it should refer to the request in regulation 1. The Regulations call themselves the "Facilitation Regulations, 2002", though published in 2003.

Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent verification and validation review of 15 October 2026 (Critical 1, Major 4, Minor 9, Improvement 4), all approved by the document owner. Items that could not be verified remain marked "(verify)" and are listed as open below.

#	Finding (severity)	Where	Change made
1	s.189A(7) day count — earliest termination notice (Critical)	Interpretation point "Counting days"; comparison table; 1.12; Track 3B intro; 3B.7; 4.5; Phase 4 Watch; Timeline 3B; Figures 1–3	Earliest s.189A(7) termination notice is day 61 (60 full days must have elapsed after the notice date); earliest s.189A(8)(a) referral is day 31; typical earliest termination about day 89. Figure 1 ("not before day 61"), Figure 2 ("day 31+") and Figure 3 (timeline bars and markers) regenerated.
2	Code item 24(14) 60-day minimum for every s.189A case (Major)	Comparison table (3C); Track 3C intro; 3C.4; Timeline 3C; Points to check #3; Figure 3	Day 61 adopted as the internal floor on track 3C as well, unless periods are varied by agreement (s.189A(2)(c)); Points to check #3 rewritten so it no longer tells users that a 60-day floor for all s.189A cases is wrong.
3	BCEA s.37(2)–(6) notice rules missing (Major)	4.5	Added written notice and oral explanation (s.37(5)), the bar on notice during or running with Chapter Three leave except sick leave (s.37(6)), and that a collective agreement may vary the period within s.37(2)–(3).
4	Secondary-strike notice period (Major)	P4	Corrected from 14 days to at least seven days' written notice to the secondary employer (s.66(2)(b)).
5	Direct Labour Court referral after failed facilitation (Major)	Interpretation point "Different dispute routes"; comparison table; 4.6; P5; Drafting issues; Figure 3	Stated as settled: no conciliation; Labour Court within 90 days of the termination notice (NUMSA v Industrial Oleo Chemical Products [2026] ZACC 22, overruling NUMSA v SAA Technical, LAC 2024; Regs reg 9).
6	Schedule 7 item 32 repealed (Minor)	P2 Authority; Drafting issues; Sources	Reliance on item 32 removed; P2 cites the Labour Court Rules, 2024 (urgent / expedited procedure); the item 32 drafting bullet deleted.
7	DMRE outdated (Minor)	Hand-offs register	Now Department of Mineral and Petroleum Resources (DMPR); MPRDA s.52 notice.



#	Finding (severity)	Where	Change made
8	Draft Labour Relations Amendment Bill not mentioned (Minor)	Legal status; 6.6; P2	Added as DRAFT, not in force (published for comment 26 February 2026, not yet tabled); proposes deleting s.189A(13)–(18). Resolves author question 4.
9	s.64(1)(d) State-employer notice (Minor)	P4 Deadline	48 hours (s.64(1)(b)); seven days where the State is the employer (s.64(1)(d)).
10	De Beers / Revan citation (Minor)	Interpretation point "Premature notice"	Two separate LAC decisions; "rejected the invalidity line" (full citations still to verify).
11	Steenkamp 2019 case name (Minor)	Interpretation point "Different dispute routes"	Corrected to Steenkamp v Edcon [2019] ZACC 17 (CC).
12	Insolvency Act s.38 mischaracterised (Minor)	Interpretation point "Who is the employer"; 0.10; Hand-offs register	s.38(1) suspension; consultation and 21-day proposals (s.38(5)–(7)); automatic termination 45 days after final appointment (s.38(9)); BCEA s.41(2) severance.
13	BCEA s.32 final-pay deadline (Minor)	5.1	Final remuneration no later than 7 days after termination (BCEA s.32); BP target on termination date retained.
14	Code item 24(3)–(4) overstated (Minor)	Drafting issues	Rewritten: item 24(4) omits the workplace forum and nominated representatives, but item 24(3) cross-refers to all s.189(1) parties.
15	POPIA special personal information (Improvement)	0.9; 1.8; 1.10; 3.9; Liability register	Added POPIA ss.18, 26–27; identify the s.27 authorisation for race, union and health data; limit access to the consultation file.
16	Code item 23(2) last-resort test (Improvement)	Interpretation point "Fair reason"	Warning added for profit-improvement retrenchments: record why each alternative could not achieve the objective.
17	Non-facilitated referral start date (Improvement)	P5; Timeline 3C	Planning rule: 90 days from the later of the s.64(1)(a) certificate/period and the termination notice; LA to confirm.
18	Draft Code caveat (Improvement)	Legal status; Points to check #2; Sources	Item references stated as verified against the final Code (GN 3470, GG 53294, 4 September 2025).
C	Cover and dates	Cover; subtitle	Version v1.1; date 19 October 2026; "As at 19 October 2026".
O1	OPEN — s.191(12) current wording	Interpretation point "Different dispute routes"	Clarified that "fewer than ten employees" refers to the employer's workforce; current statutory text not retrieved — marked (verify).
O2	OPEN — primary text of s.189A(1)–(3), (9)–(20); ss.191(1)(b), 145, 194	Throughout	Figures match secondary sources but were not confirmed against the Act's text, including "lock-out only in response to a strike notice" (P4). Retained.



#	Finding (severity)	Where	Change made
O3	OPEN — CCMA referral form LRA 7.11; PDA s.2(3)/s.142A; BCEA ss.68–69; EEA ss.16, 20; MPRDA s.52; Companies Act s.136(1)(b)	3C.2; 4.8; 6.4; Liability register; 0.10	"(verify)" markers retained.
O4	OPEN — full case citations	Interpretation points	Atlantis Diesel, Johnson & Johnson, BMD Knitting Mills, Algorax, General Food Industries, De Beers and Revan to be checked. No judgment found on the day-count reading in Finding 1; the conservative day-61 position is adopted.
O5	OPEN — author questions	Scope	State employers and mining-right holders (s.64(1)(d), s.189A(20), MPRDA s.52, SLPs); bargaining council agreements on retrenchment; current parental-leave regime for s.37(6) timing (verify after Van Wyk v Minister of Employment and Labour, CC 2025); unprotected copy of the "rev 19 May" deck still required.

Sources

- Labour Relations Act 66 of 1995, consolidated (uploaded), in particular ss.16, 64, 65, 66, 186–192, 194, 197, 198A and 213 (Schedule 7 item 32 is repealed; s.189A(13) applications follow the Labour Court Rules, 2024).
- Draft Code of Good Practice on Dismissal, GN R.5765, GG 51947, 21 January 2025 (uploaded; scanned and read by OCR, so check any quoted wording against the Gazette); final Code of Good Practice: Dismissal, 2025, GN 3470, GG 53294 (item references verified against the final text at the 15 October 2026 review).
- Regulations for the conduct of facilitations in terms of section 189A (Facilitation Regulations), as published by Workinfo (https://www.workinfo.org/index.php/legislation/item/1724-regulations-for-the-conduct-of-facilitations-in-terms-of-section-189a).
- Commentary confirming that the final Code repealed Schedule 8 and the 1999 operational requirements code and substantively mirrors the draft: Cliffe Dekker Hofmeyr, 4 September 2025; Werksmans, 2026; HBG Schindlers, 2026. Commentary on the Labour Court Rules, 2024: DLA Piper, 2024.
- GBS PDA, AARTO, COIDA, Misconduct and Incapacity process flows (project files), for format and cross-references.

- The BCEA, EEA, Interpretation Act, Companies Act, Insolvency Act, MPRDA, POPIA, Income Tax Act, Unemployment Insurance Act, CCMA Rules and the cases named are cited from general knowledge; verify wording, citations and any later authority before use.
- v1.1 sources (V&V review, 15 October 2026): NUMSA v Industrial Oleo Chemical Products (CCT 367/24) [2026] ZACC 22; Steenkamp v Edcon [2016] ZACC 1 and [2019] ZACC 17; Code of Good Practice: Dismissal, 2025, items 23(2), 24(3)–(4), 24(14); BCEA ss.32, 37(2)–(6); LRA ss.64(1), 66(2)(b); Insolvency Act s.38; Labour Court Rules, 2024 (GN 4775, GG 50608); Information Regulator Guidance Note on Processing Special Personal Information; Bowmans and Cliffe Dekker Hofmeyr commentary on Industrial Oleo (May 2026) and on the draft Labour Relations Amendment Bill (2026).

This flow is a working document for legal review, not legal advice.